

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

Plain-

[PROPOSED] ORDER RE DEMURRER

tiff primarily requests alternative (B) (demurrer overruled; leave to amend). Alternatives (A) and (C) remain for the Court's consideration.

RECITALS / FINDINGS (optional; adopt or strike to match department practice)

WHEREAS, on demurrer the Court treats as true facts well pleaded on the face of the complaint and tests the legal sufficiency of the allegations; and

WHEREAS, the operative pleading alleges a **noncommunicative** institutional gravamen, **channel separation** from the underlying negligence action, theories of concealment and delayed discovery, and **segregated** economic damages for fraud and unfair competition; and

WHEREAS, **leave to amend** is required unless there is **no reasonable possibility** the pleading can

be cured;

NOW, THEREFORE, the Court having considered Defendant's Demurrer, Plaintiff's Opposition, oral argument, and the pleadings on file,

IT IS ORDERED that one of the following alternative dispositions applies as marked by the Court:

(A) Demurrer overruled. Defendant's Demurrer is **overruled**. Defendant shall answer within **10** days after service of this order (Code Civ. Proc., § 430.40, subd. (c)).

(B) Demurrer overruled; leave to amend. Defendant's Demurrer is **overruled**. Plaintiff is granted leave to amend the complaint consistent with the proposed pleading lodged with the motion for leave and/or Price v. Dames & Moore (2001) 92 Cal.App.4th 355 and Code of Civil Procedure section 472. Plaintiff shall file and serve an amended complaint within **30** days; Defendant shall respond within **30** days thereafter.

(C) Demurrer overruled with limited leave. Defendant's Demurrer is overruled as to those causes of action identified by the Court. Plaintiff is granted leave to amend only as directed by the Court, within **30** days; Defendant shall respond within **30** days thereafter.

IT IS FURTHER ORDERED that this order be filed and served in accordance with Code of Civil Procedure section 1010.6 and applicable rules.

Dated: April 14, 2026

Judge / Commissioner / Judicial Officer of the Superior Court